

KMVTECH EDUCATION

HRL1 · Module 5

Limitation and derogation

Lesson: When rights may be limited

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Most rights are not absolute. Limitation clauses allow restriction for legitimate aims (national security, public order, public health, morals, rights of others) provided the restriction is prescribed by law and necessary/proportionate in a democratic society.

Article 43 of the Uganda Constitution is the general limitation clause. Specific rights may carry their own internal limits. Absolute rights (e.g. freedom from torture) admit no limitation.

Derogation in a public emergency is permitted only to the extent strictly required, under formal proclamation, and consistent with international obligations; certain rights remain non-derogable.

- Proportionality analysis typically examines legitimacy of aim, rational connection, minimal impairment and overall balance.

2. DETAILED RULES AND APPLICATION

Example: a curfew or assembly ban during unrest must be tested for legality, legitimate aim, necessity and proportionality; blanket or indefinite measures are vulnerable.

Limitation is the ordinary tool; derogation is exceptional and tightly conditioned. Never conflate the two.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Ugandan courts scrutinise limitation claims carefully, especially where expression, assembly or liberty is at stake. International standards (Siracusa Principles, treaty-body guidance) inform the analysis.

Exam trap: treating every government convenience as a sufficient 'public interest' justification, or applying emergency powers without checking formal and substantive requirements.

Method: (1) is the right absolute? (2) is the restriction prescribed by law? (3) legitimate aim? (4) necessary and proportionate? (5) if emergency, is formal derogation valid and non-derogable rights respected?

Links directly to enforcement — a failed limitation analysis strengthens the rights claim.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What are the typical elements of a limitation test?
2. Distinguish limitation from derogation.
3. Which rights are non-derogable under the Constitution / ICCPR?
4. What does 'prescribed by law' require?
5. Why is proportionality multi-part?
6. Give one example of an invalid limitation.

Exam tip: Structured limitation analysis wins or loses the case.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.